

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.1479 of 2005.

Alhaz Kazi Abdul Oadud

.....Plaintiff-Petitioner.

-VS-

Md. Abu Taher and others.

..... Defendant-Opposite-Parties.

No one appears.

.....For the petitioner.

Mr. Mohammad Abul Hasan, A.A.G. with

Ms. Rawsan Ara Rahman, A.A.G.

.....For the opposite-party Nos.2-5.

Heard on: 14.05.2024 and
Judgment on: 15.05.2024.

This Rule was issued calling upon the opposite-party No.1-5 to show cause as to why the impugned judgment and order dated 16.04.2005 passed by the learned District Judge, Dhaka in Civil Revision No.129 of 2005 allowing the Revision and Reversing the judgment and order dated 28.02.2005 passed by the learned Senior Assistant Judge, 4th Court, Dhaka in Title Suit No.50 of 2005 allowing the application for mandatory injunction filed by the plaintiff-petitioner, should not be set aside and/or pass such other or further order or orders passed to this Court may seem fit and proper.

The case of the plaintiff-petitioner, in short is that the Bangladesh Book Publishers and Sellers Association is a commercial institution and the same is being managed and guided by the Trade Organization Ordinance,

1961 and the plaintiff is one of the members of it. The Government issued a circular on 31.07.2002 as per power conferred upon it by the Trade Organization Ordinance, 1961 which has the binding force upon the Bangladesh Book Publishers and Sellers Association. As per provision of the said circular the election of the office bearers of the executive committee of the said association was held on 18.12.2003 and 30.12.2003 and the result was declared on 04.01.2003 and as per circular the executive committee of the said association was elected for a period of 2(two) years and accordingly the tenure of the said executive committee has been expired on 03.01.2005 and the executive committee has failed to conduct the election for the next term within 15(fifteen) days before the expiry of the terms of the executive committee as per provision of clause 1(4) of the said circular and accordingly as per provision of 1(5) of the said circular the executive committee would be deemed to have been discharged and the executive committee is no more in existence and as per provision of clause 1(6) of the said circular the Government is in conclusive obligation to appoint an administrator to perform the function of the Executive Committee of the Bangladesh Book Publishers and Sellers Association. On 06.12.2004 the plaintiff filed an application to the Government to appoint an administrator and consequently a 7(seven) days show cause notice has been served upon the president of the executive committee of the said association but failed to take any positive step. Subsequently, the defendant No.4 issued a letter asking the parties to held a meeting in his office room to have a solution in

the stated premises and in the said notice he also addressed one Md. Abu Taher as the president of the Bangladesh Book Publishers and Sellers Association which is illegal and beyond his authority and the Government can do nothing but to appoint an administrator to take a decision for conducting election of the executive committee of the said association for the year 2004-2006. Hence, the case.

During pendency of the suit the plaintiff-petitioner on 17.02.2005 filed an application for mandatory injunction under section 151 of the Code of Civil Procedure praying for a direction upon the defendants-appellants to appoint an administrator for performing the function of the executive committee of the Bangladesh Book Suppliers and Sellers Association. After hearing the learned Senior Assistant Judge, 4th Court, Dhaka issued a show cause notice upon the defendants within 7(seven) days. Though the show cause notice has been duly served upon the defendants but the defendants did not appear before the trial Court. Thereafter, on 28.02.2005 the plaintiff-petitioner filed an application under section 151 of the Code of Civil Procedure before the learned trial Court. After hearing the learned Court was pleased to allow the aforesaid application and thereby directed upon the defendants-opposite parties No.2-5 to appoint an administrator for performing the function of the executive committee of the Bangladesh Book Publishers and Sellers Association within 1(one) month.

Thereafter, the defendants-opposite parties No.1-5 appeared before the learned trial Court and filed an application under section 151 of the Code

of Civil Procedure praying for recalling the order dated 28.02.2005 and staying the operation of the same. In the meantime one Md. Abu Taher (opposite party No.1) filed an application under Order 1 Rule 10 of the Code of Civil Procedure for adding him as defendant. On 23.03.2005 the learned trial Court has taken up for hearing the matter and after hearing both the parties the learned Court was allowed the aforesaid application under Order 1 Rule 10 of the Code of Civil Procedure for adding party as defendant and another application under section 151 of the Code of Civil Procedure for recalling the order of mandatory injunction dated 28.02.2005 was rejected.

Being aggrieved by and dissatisfied with the order dated 28.02.2005 passed by the learned Court of Senior Assistant Judge, 4th Court, Dhaka the added defendant-opposite party No.1 preferred Miscellaneous Appeal No.108 of 2005 before the learned District Judge, Dhaka. Subsequently, the aforesaid Miscellaneous Appeal has been converted to Civil Revision No.129 of 2005.

On 16.04.2005 after hearing both the parties the learned District Judge, Dhaka allowed the Civil Revisional and set aside the order dated 28.02.2005 passed by the learned Senior Assistant Judge, 4th Court, Dhaka.

Being aggrieved by and dissatisfied with the impugned Judgment and order dated 16.04.2005 passed by the learned District Judge, Dhaka the plaintiff-opposite party-petitioner has preferred the Civil Revision before this Court under Section 115(4) of the Code of Civil Procedure and the leave was granted and obtained the Rule with granting an ad-interim order of stay.

During pendency of this Rule, on 25.05.2005 the added defendant opposite party No.01 namely, Md. Abu Taher appeared before this Court and with filed an application for vacating the order of stay dated 30.04.2005 granted by this Court and after hearing the Hon'ble High Court the earlier order of stay was vacated.

This matter has been appearing in the daily cause list with the name of the learned Advocate for the petitioners as well as the opposite-parties in a couple of days but no one appeared on behalf of the petitioner as well as opposite party No.01 to press the Rule. It is well settled by our Appellate Division decision the case of Safor Uddin Vs. Fazlul Huq, reported in 49 DLR(AD) 151 that a Revision can be disposed of on merit in the absence of either party or both the parties. In view of the facts this an old case, I am inclined to take up for disposal on merit considering the materials on record.

The petitioner claimed that the learned District Judge misconceived and misconstrued the contents of the application, the proprietary application of laws to that effect and thereby committed an error of law resulting in an error in the decision occasioning failure of justice in passing the impugned judgment and order. The learned Judge failed to appreciate that the maintainability of a suit is bundle of fact and for the assignment of the same the Court is required to consider the whole pleadings (though yet no written statement has been filed), the act of the parties (whether bonafide or malafide) and the proprietary application of the concerned laws and in disposing of an injunction application the Court is not in a position to decide

the maintainability of a suit and thus the learned District Judge was wrong in holding that the injunction order is not sustainable as the suit is not maintainable and thereby the learned District Judge committed an error of law resulting in an error in the decision occasioning failure of justice in allowing the revisional application by setting aside the injunction order granted by the learned trial Court. He further claimed that the learned District Judge failed to appreciate that admittedly the tenure of the elected executive committee of the Bangladesh Book Publishers and Sellers Association has already been expired on 03.01.2005 and as per provision of clause 1(5) of the circular dated 31.07.2002 the executive committee is no more in existence and as per clause 1(6) of the said circular the Government is in exclusive obligation to appoint an Administrator to that effect and thereby the learned District Judge committed an error of law resulting in an error in the decision occasioning failure of justice in allowing the revisional application by setting aside the injunction order granted by the learned trial Court. The learned District Judge failed to appreciate that the contesting defendant opposite party Nos.2-5 have not been made party in the Revisional application and the application for adding them as opposite parties in the revision has subsequently been not pressed by the defendant opposite party No.1 (the petitioner of the Revisional application) and thus the Civil Revision suffers from the defect of parties and the same is not tenable in the eye of law and thereby the learned District Judge committed an error of law resulting in an error in the decision occasioning failure of

justice in allowing the Revisional application by setting aside the injunction order granted by the learned trial Court. Hence, the Rule is liable to be made absolute.

On the other hand, the opposite party claimed that section 10 of the Trade Organization Ordinance, 1961 confers power upon the Government to appointment an administrator for a trade organization in certain circumstances. And also explained that under section 10 of the Trade Organization Ordinance, the Government may appoint an administrator to take over management of a trade organization in supersession of its executive committee only if the Government is of the opinion that the circumstances and state of affairs set out in the said section are present and under no circumstances the Government may appoint an administrator without giving the executive committee an opportunity of hearing. From the impugned order it is apparent that the Government did not form the 'opinion' but it passed the order under section 10 as directed by the court of 4th Assistant Judge, Dhaka. The Senior Assistant Judge is not the Government. So the order is ex-facie illegal and malafide.

The present Board of Director of petitioner's Samity has been discharging in function since its taking over the charge and at present there is no circumstances or state of affairs in the petitioner's Samity that could call for or justify appointment of an administrator to take over management of the Samity. It is palpably apparent from the order of appointment of Administrator dated 28.02.2005 that the Government has obtained the order

of injunction in order to create an avenue to interfere into the affairs of the Samity.

He further claimed that the Government has acted illegally and without any lawful authority in appointing an administrator to take over management of the Samity with reference to the order of the Court below without forming any opinion or being satisfied that any one of the circumstances existed in the Samity that might call for appointment of administrator inasmuch as under section 10 of the Trade Organization Ordinance, 1961 the Government can appoint an administrator only when the Government is of the opinion that one of the circumstances or state of affairs is present in relation to a trade organization. He further claimed that the learned District Judge passed the judgment and order dated 16.04.2005 considering the actual facts and circumstances and citing the section 12 of Trade Organization Ordinance, 1961. According to section 12 of Trade Organization Ordinance, 1961 there is bar of suit or other legal proceedings without referred the dispute in the Arbitration Tribunal of Federation of Bangladesh Chamber of Commerce and Industry and as such the Rule is liable to be discharged.

Mr. Mohammad Abul Hasan, the learned Assistant Attorney General on behalf of the opposite party Nos.2-5 appeared before this Court and submits that the opposite party No.1 is a president of the Bangladesh Book Publishers and Sellers Association and he declared the election schedule on 24.06.2005 for the year 2005-2008. Thereafter, final voter list was prepared

and published. So, the total election process has been completed and as such the Rule is liable to be discharged.

Scrutinizing the relevant papers and documents it is obvious to note that the Bangladesh Book Publishers and Sellers Association is a commercial institution and the same is being managed and guided by the Trade Organization Ordinance, 1961 and the plaintiff is one of the members of it that the Government issued a circular on 31.07.2002 as per power conferred upon it by the Trade Organization Ordinance, 1961 which has binding force upon the Bangladesh Book Publishers and Sellers Association. On 06.12.2004 the plaintiff filed an application to appoint an administrator before the learned Senior Assistant Judge, 4th Court, Dhaka and consequently, show cause notice has been served upon the president of the Executive Committee of the said Association and the aforesaid Association failed to take any positive step. The defendant No.4 issued a letter asking the parties to hold a meeting in his office Room to have a solution in the stated premises and the said notice he also addressed one Md. Abu Taher as the president of the Bangladesh Book Publishers and Sellers Association which is illegal and beyond his authority. On the other hand, the name of the Bangladesh Book Publishers and Sellers Samity was changed as into its present name, Bangladesh Publishers and Book Sellers Association. The Government by the order under memo No.Com/TOT-49/85/239 dated 12.06.1985 approved the name. Since the said incorporation and issuance of Licence of Association was functioning properly as per its Memorandum

and Article of Association the law of the country. The Government is making regular correspondence with the petitioner's Samity. The opposite party is the elected president of the aforesaid Association which the election was held on 28.12.2004 for the terms 2002-2004. The Government nominated representative by the order dated 27.10.2002 to supervise the election. Thereafter, the executive committee took resolution in their meeting and after discussions the decision was taken that the tenure of the executive committee will be 3 years instead of 2 years. The matter has been decided for amendment of Memorandum and Article of Association and was sent to the Director, Trade Organization, Ministry of Commerce, Government of Bangladesh for approval under the signature of President, Bangladesh Publishers and Book Sellers Association vide memo No. Pustuk/2004/347 dated 31.07.2004. The president of the opposite-party No.01 Samity sent a letter regarding the announcement of election schedule on 24.06.2005 for the year 2005-2008 drawing attention of the Director, Trade Organization vide letter No. Pustuk/2005/43 dated 08.02.2005 and final voter list was prepared and published. The election process is clearly showing under section 10 of the Trade Organization Ordinance, 1961 the Government as follows:

Section 10 of the Trade Organization Ordinance, 1961 confers power upon the Government to appoint an administrator for a trade organization in certain circumstances. Section 10 of the Trade Organization Ordinance reads as follows:

- 1) Where the Government is of opinion that the affairs of a registered trade organization are not being properly managed and that the interests of trade and industry so require, it may, by order in writing, supersede the Executive Committee of such trade organization for such period, not exceeding one year, as may be specified in the order;

Provided that no such order shall be made unless the Executive Committee has been given a notice in writing of and afforded an opportunity to make a representation against, the intended supersession.

- 2) Where.....

- (a) an Executive Committee is superseded under subsection (1), or
- (b) it is not, in the opinion of the (Government), possible for any reason to reconstitute the Executive Committee at the due time of such reconstitution, or
- (c) the Executive Committee is debarred, by an order of any Court, from discharging its functions, the Government may appoint, for such period, not exceeding one year, as it may think fit, an Administrator to take over the functions of such Committee and to manage and conduct the affairs of the trade organization:

Provided that if the period of supersession is terminated or the Executive Committee is reconstituted or the order of the Court is vacated before the expiry of the period for which the

Administrator shall have been appointed, the Government may direct the Administrator to relinquish the functions taken over by him in favour of the Executive Committee.

(3) Upon the appointment of an administrator under clause (a) or clause (b) of sub-section (2), the members of the Executive Committee shall be deemed to have vacated their respective offices and no such member shall act or transact any business after such appointment.

From plain reading, as per Trade Organization Ordinance, 1961, the Executive Committee, the announcement of the election schedule held on 24.06.2005 for the year of 2005-2008 and final voter list was prepared and published. There is no Embargo in the Election process. Therefore, the total election process has already been completed as well as on 25.05.2005 the earlier order of stay was vacated. So, the Rule has become infructuous.

Having regard to the facts and circumstances as discussed above I am to hold that the impugned judgment and order dated 28.02.2005 passed by the learned District Judge, Dhaka rightly and correctly allowing the Revision. There is no illegality and infirmity or misreading or non reading evidence or non consideration of material facts resulting in an error in the decision occasioning failure of justice by which it can be interfered by this Court.

Therefore, I find no merit in this Rule.

In the result, the Rule is discharged.

The impugned judgment and order dated 16.04.2005 passed by the learned District Judge, Dhaka in Civil Revision No.129 of 2005 is hereby affirmed.

However, there will be no order as to cost.

Communicate the judgment and order immediately at once.

Md. Abadul Haque/Bench Officer.